

26NWLC39831 26NWLC39831

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 26NWLC39831 Hearing Date: September 21, 2026 Dept: Y

26NWLC39831: CAVALRY SPV I, LLC AS ASSIGNEE OF CAPITAL ONE, N.A. vs LAQUITO THOMAS

Tentative Ruling:

The Court has read and considered Defendant Laquito Thomas's ("Defendant") Motion to Quash Service of Summons ("Motion") and the Opposition filed by Plaintiff Calvary SPV I, LLC ("Plaintiff"). The Court has also reviewed the relevant Court records.

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure § 418.10. Defendant argues that she was not properly served in compliance with the law.

Evidence Code § 647 creates a rebuttable presumption of valid service when, as here, a registered process server files a Proof of Service with the Court. The individual questioning the validity of service must present sufficient evidence to demonstrate that service did not occur as stated in the Proof of Service. Evid. Code §§ 647, 660.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on July 13, 2026 creating a presumption of service under Evidence Code section 647. The Proof of Service indicates personal service on July 13, 2026 at 4:38 p.m. at "368 W. 8th St., Apt 42, San Pedro, CA 90731-3722."

Defendant's declaration, which was signed under penalty of perjury, states that she was not home when the alleged service occurred; she did not speak with the process server through the call box as alleged by the process server; and she did not accept service of any documents or authorize them to be left at her door. She states that she found the legal papers on July 15, 2026. She has provided evidence that she was not in the State of California at the time of the alleged service. The Driver's Daily Log attached to her Motion demonstrates that she was in Las Vegas at the time of the alleged service on July 13, 2026. The Court finds that Defendant has rebutted the presumption of personal service.

Having considered the moving papers, Defendant's Motion to Quash Service of Process is GRANTED.

Clerk to give notice.